

SENATE No. 2599

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing insurance coverage for the medically necessary treatment of port-wine stains.

PETITION OF:

NAME:

Patrick M. O'Connor

DISTRICT/ADDRESS:

First Plymouth and Norfolk

SENATE No. 2599

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 2599) (subject to Joint Rule 12) of Patrick M. O'Connor for legislation to provide insurance coverage for the medically necessary treatment of port-wine stains. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing insurance coverage for the medically necessary treatment of port-wine stains.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 175 of the General Laws is hereby amended by inserting after
2 section 47UU the following section:

3 Section 47VV. (a) For the purposes of this section, the following terms shall have the
4 following definitions unless context clearly indicates otherwise:

5 “Port-wine stains”, A capillary malformation skin condition diagnosed as nevus
6 flammeus, Sturge-Weber syndrome, or Klippel-Trénaunay syndrome, also known as a port-wine
7 birthmark. “medically necessary treatment”, medical treatment intended to prevent or address
8 functional impairments related to vision, oral function, or physical mobility, medical
9 complications such as inflammation, bleeding, infection, or hypertrophy of the lesion or
10 significant psychosocial distress, particularly in pediatric patients.

“early intervention treatment”, topical, intralesional, or systemic medical therapies, Food and Drug Administration-approved laser treatments, surgery or other medical procedures aimed at treating or preventing health complications associated with port-wine stains.

(b) Any individual or group policy of accident and sickness insurance issued under this chapter; any subscription certificate under an individual or group medical service agreement delivered within the Commonwealth under Chapter 176B; any group health maintenance contract issued by a health maintenance organization under Chapter 176G; and any coverage offered by the Group Insurance Commission under Chapter 32A shall provide coverage for medically necessary early intervention treatments of port-wine stains in individuals 18 years of age or younger.

(c) Coverage shall not include treatment solely for cosmetic purposes unless such treatment also meets one or more of the criteria defined as medically necessary in subsection (a).

(d) No policy shall impose additional deductibles, coinsurance, or limits on the number of covered treatments for port-wine stains that are more restrictive than those imposed on other medically necessary services.

SECTION 2. This act shall apply to contracts that take effect or are renewed on or after January 1, 2026.

Section 3. (a) For the purposes of this section, the following terms shall have the following meanings unless the context clearly requires otherwise:-

“Port-wine stains”, A capillary malformation skin condition diagnosed as nevus flammeus, Sturge-Weber syndrome, or Klippel-Trénaunay syndrome, also known as a port-wine birthmark.

“medically necessary treatment”, medical treatment intended to prevent or address functional impairments related to vision, oral function, or physical mobility, medical complications such as inflammation, bleeding, infection, or hypertrophy of the lesion or significant psychosocial distress, particularly in pediatric patients.

“early intervention treatment”, topical, intralesional, or systemic medical therapies, Food and Drug Administration-approved laser treatments, surgery or other medical procedures aimed at treating or preventing health complications associated with port-wine stains.

(b) Notwithstanding any general or special law to the contrary, the Center for Health Information and Analysis shall conduct a review of a mandated health benefit proposal to require coverage for the medically necessary treatment and early intervention of port-wine stains in individuals 18 years of age or younger. The review shall include consideration of treatment intended to prevent or address: (i) functional impairments related to vision, oral function, or physical mobility; (ii) medical complications such as inflammation, bleeding, infection, or lesion hypertrophy; and (iii) significant psychosocial distress, particularly in pediatric patients; provided however, that the review shall not include a review of treatment solely for cosmetic purposes unless such treatment also meets one or more of the criteria defined as medically necessary in subsection (a) of Section 3 .

The review shall be performed by the center consistent with section 38C of chapter 3 of the General Laws. The center shall evaluate the impact of such a mandate as a requirement for all

52 of the health plans and policies under subsection (a) of said section 38C of said chapter 3, as well
53 as the impact of such a mandate on the division of medical assistance and its contracted health
54 insurers, health plans, health maintenance organizations, behavioral health management firms
55 and third party administrators under contract to a Medicaid managed care organization or
56 primary care clinician plan. The center shall file its review with the clerks of the house of
57 representatives and senate, the joint committee on mental health, substance use and recovery, the
58 joint committee on health care financing and the house and senate committees on ways and
59 means not later January 1, 2026.